

FEDERAL MARITIME COMMISSION

Docket Nos. 16-01 and 17-09

IN RE VEHICLE CARRIER SERVICES

**RESPONDENTS' CONSOLIDATED MOTION FOR
AN EXTENSION OF TIME WITHIN WHICH TO ANSWER**

Pursuant to Commission Rule 62, 46 *C.F.R.* § 502.62, Respondents Nippon Yusen Kabushiki Kaisha and NYK Line (North America) Inc. (collectively, "NYK"); EUKOR Car Carriers Inc. ("EUKOR"); Wallenius Wilhelmsen Logistics AS and Wallenius Wilhelmsen Logistics Americas LLC, (collectively, "WWL"); Compañía Sud Americana de Vapores S.A. and CSAV Agency North America, LLC (collectively, "CSAV"); Höegh Autoliners Holdings AS, Höegh Autoliners AS, Höegh Autoliners, Inc., Autotrans AS and Alliance Navigation LLC (collectively, "Höegh"), Mitsui O.S.K. Lines, Ltd., Mitsui O.S.K. Bulk Shipping (USA) Inc., World Logistics Service (U.S.A.) Inc. and Nissan Motor Car Carrier Co., Ltd. (collectively, "MOL") and Kawasaki Kisen Kaisha, Ltd., and "K" Line America, Inc. (collectively, "K' Line") (NYK, EUKOR, WWL, CSAV, Höegh, MOL and "K" Line are referred to collectively as "Respondents") respectfully move the Hon. Erin M. Wirth, Administrative Law Judge ("Presiding Officer") of the Federal Maritime Commission ("Commission") for an order extending the time to answer the complaints filed in Docket Nos. 16-01 and 17-09 until the later of (a) June 8, 2018 (ten (10) days after Respondents' grant of leave to appeal expires on May 29, 2018); or (b) if any exceptions or appeals are filed in any of Docket Nos. 16-01, 16-07, 16-10,

16-11, and 17-09, ten (10) days after resolution of any such exceptions or appeals by the Commission. In support thereof, Respondents respectfully represent as follows:

1. Pursuant to Commission Rule 62, 46 *C.F.R.* § 502.62, the presiding officer may extend the time to file an answer for “good cause shown.” Respondents respectfully submit, based on the following, that good cause exists for an extension of the time to answer the complaints filed in Docket Nos. 16-01 and 17-09.

2. On May 7, 2018, Respondents received service of the Presiding Officer’s initial decision granting in part and denying in part Respondents’ motion to dismiss and supplemental motion to dismiss (the “Initial Decision”).

3. Commission Rule 62(b)(1), 46 *C.F.R.* § 502.62(b)(1), requires that Respondents file an answer within ten (10) days of service of the denial of a motion to dismiss. Therefore, under Commission Rule 62 and without an extension, the latest date for Respondents to answer the complaints in Docket Nos. 16-01 and 17-09 is May 17, 2018.

4. In the Initial Decision, the Presiding Officer granted Respondents leave to appeal the Initial Decision within twenty-two (22) days, pursuant to Commission Rule 221, 46 *C.F.R.* § 502.221. Therefore, Respondents have been granted leave to appeal the Initial Decision until May 29, 2018.

5. The requirement of Rule 62 to file an answer within ten (10) days of the denial of the motion to dismiss conflicts with the ability for Respondents to properly consider and potentially exercise the leave granted to them by the Presiding Officer to appeal the partial denial of their motion to dismiss within twenty-two (22) days. Extending the time to answer the complaints until June 8, 2018 -- that is, ten (10) days after the twenty-two (22) day period in

which Respondents are granted leave to appeal -- allows Respondents to properly consider and potentially exercise the leave to appeal granted.

6.. Extending the time to file an answer until at least ten (10) days after Respondents' right to appeal by leave granted has been exhausted also promotes judicial economy, as it would insure that all of the dockets in this action -- Docket Nos. 16-01, 16-07, 16-09, 16-10, and 17-09 -- proceed in tandem at only one Commission level at a time.

7. Likewise, as the Presiding Officer acknowledged in the Initial Decision, Complainants in Docket Nos. 16-01, 16-07, 16-10, 16-11, and 17-09 "may file exceptions as a matter of right" pursuant to Commission Rule 227(b)(1), and would have twenty-two (22) days to do so. Therefore, extending the time for Respondents to answer the complaints until at least those appeal rights are exhausted (June 8, 2018) aligns the schedules in Dockets Nos. 16-01 and 17-09 with the schedules in Docket Nos. 16-07, 16-10, and 16-11, such that any exceptions filed with the Commission will occur before Respondents are required to answer the complaints in Docket Nos. 16-01 and 17-09.

8. Also, pursuant to Commission Rule 102(a), 46 *C.F.R.* § 502.102(a), motions for an extension of time filed less than seven (7) days before the scheduled filing date may be considered where reasonable grounds are found for the failure to file at least seven (7) days before the scheduled filing date. Respondents respectfully submit that filing this motion for an extension of time at least seven (7) days before the default filing date of the answer is unrealistic: it would have required that Respondent file this motion within three (3) days after service of the Initial Decision, an unreasonably short period of time given the length and breadth of the Initial Decision and the need to coordinate among six separate sets of Respondents.

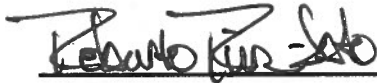
9. If any exceptions or appeals to the Initial Decision are filed, Respondents respectfully request that the time to answer the complaints filed in Docket Nos. 16-01 and 17-09 be extended until ten (10) days after such exceptions or appeals have been resolved by the Commission. This would allow all of the Dockets in this consolidated matter to proceed at only one Commission level at a time, thereby promoting efficiency and judicial economy. As the Presiding Officer has recognized, “efficiency is enhanced by maintaining these proceedings in a consolidated state.” Initial Decision at 55. Similarly, as the Presiding Officer has recognized, “[t]he five complaints set forth substantially similar detailed accounts of the alleged conspiracy by the Respondents,” and “it is anticipated that if these cases proceed at this level, there will be a need for extensive discovery.” *Id.* at 6, 55. Therefore, consolidated proceedings in these cases would have significant efficiency advantages over piecemeal proceedings for the Commission and the Parties.

10. As required by Commission Rule 69(g), 46 C.F.R. § 502.69(g), Respondents had made inquiry of counsel for the freight forwarders/ocean transportation intermediaries [complainants in Docket No. 16-01] and the Fiat entities [complainants in Docket No. 17-09] in respect of whether they consent to the relief requested in this motion; as yet, no definitive response has been received from either.

WHEREFORE, for the foregoing authority, arguments and reasons, Respondents respectfully request an extension of the time to answer the complaints in Docket Nos. 16-01 and 17-09 until the later of (a) June 8, 2018 (ten (10) days after Respondents’ grant of leave to appeal expires on May 29, 2018); or (b) if any exceptions or appeals are filed in any of Docket Nos. 16-01, 16-07, 16-10, 16-11, and 17-09, ten (10) days after resolution of any such exceptions or appeals by the Commission.

Respectfully submitted,

DATED: May 15, 2018

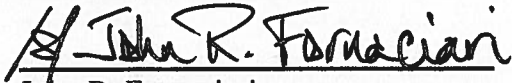


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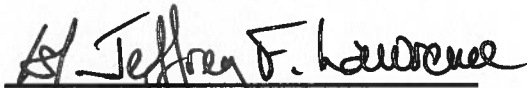
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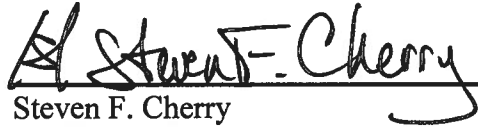
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CERTIFICATE OF SERVICE.

I hereby certify that, on May 15, 2018, true and correct copies of the foregoing Respondents' consolidated motion for an extension of time within which to answer was filed electronically with the Secretary of the Federal Maritime Commission, and electronic copies thereof were sent to all lead/liaison counsel for complainants identified in the Commission's March 16, 2017 order and in respect of Docket Nos. 16-01, 16-07, 16-10, 16-11, and 1709.

DATED: May 15, 2018

A handwritten signature in black ink, appearing to read "Roberto Rivera-Soto", written over a horizontal line.

Roberto A. Rivera-Soto